

PLD 1993 SC 473: MIAN MUHAMMAD NAWAZ SHARIF V. PRESIDENT OF PAKISTAN

GOVERNMENT OF PAKISTAN • SUPREME COURT OF PAKISTAN • FEDERAL

Document ID: sc_judgment_pld_1993_sc_473_nawaz_sharif	Enactment Date: 1993-05-26
Status: IN_FORCE	Official Source: https://www.supremecourt.gov.pk/judgments/sc_judgment_pld_1993_sc_473_nawaz_sharif
Subject Category: case_law;supreme_court;constitutional;article_58_2_b;dissolution	Version: reported-judgment-pld

PREAMBLE: Landmark Judgment of the Supreme Court of Pakistan: Declared Presidential dissolution of National Assembly under Article 58(2)(b) unconstitutional and restored the Assembly and Prime Minister.

Paragraph 1: Ratio Decidendi and Legal Principle

■■■■■■ ■■■■■ ■■ ■■■■■■■ ■■■■■ ■■■■■■: *Declared Presidential dissolution of National Assembly under Article 58(2)(b) unconstitutional and restored the Assembly and Prime Minister.*

Declared Presidential dissolution of National Assembly under Article 58(2)(b) unconstitutional and restored the Assembly and Prime Minister.

Paragraph 2: Binding Precedent under Article 189

189

Under Article 189 of the Constitution, any decision of the Supreme Court shall, to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all other Courts in Pakistan.